

24CHCV03039 24CHCV03039

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Case Number: 24CHCV03039 Hearing Date: August 3, 2026 Dept: F49

Dept. F49

Date: 8/3/26

Case Name: Richard Jones, Olivia Chan-Jones vs. Chad M.
Schott, Brooke K. Schott, and Does 1-50

Case No. 24CHCV03039

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 3, 2026

MOTION TO SET
ASIDE ORDER DEEMING MATTERS ADMITTED

Los Angeles Superior
Court Case No. 24CHCV03039

Motion filed: 2/9/26

MOVING PARTY: Plaintiffs Richard Jones and Olivia
Chan-Jones

RESPONDING PARTY: Defendants Chad M. Schott and
Brooke K. Schott

NOTICE: OK

RELIEF REQUESTED: An order from this Court setting
aside the Court's February 2, 2026 order deeming Defendant Chad M. Schott's
Requests for Admission, Set One served on each Plaintiff admitted.

TENTATIVE RULING: The motion is GRANTED.

BACKGROUND

This action arises from an alleged
breach of an oral agreement between the parties regarding the sale of property
located at 24400 Cavaliani Place, Valencia, CA 91355-6054 (the "Subject
Property").

On August 23, 2024, Plaintiffs
Richard Jones ("Richard") and Olivia Chan-Jones ("Olivia") (collectively,
"Plaintiffs") filed the Complaint against Defendants Chad M. Schott ("Chad"),
Brooke K. Schott ("Brooke") (collectively, "Defendants"), and Does 1 through
50, alleging the following causes of action: (1) breach of contract, (2) fraud,
and (3) declaratory relief. Subsequently, on January 9, 2025, Defendants filed
their joint Answer to the Complaint.

On the same day, January 9, 2025,
Defendants filed a Cross-Complaint against Plaintiffs and Does 1 to 50,
alleging the following causes of action: (1) breach of contract, (2) breach of
implied covenant of good faith and fair dealing, (3) negligent misrepresentation,
(4) unjust enrichment, (5) fraud in the inducement, and (6) declaratory relief.
Subsequently, on April 17, 2025, the Court sustained in part Plaintiffs'
demurrer to the Cross-Complaint as to the second and third causes of action,
with leave to amend. On May 28, 2025, Plaintiffs filed their joint Answer to
the Cross-Complaint.

On February 2, 2026, the Court
granted Defendants' motion to deem the matters specified in Chad's Requests for
Admission ("RFAs"), Set One, propounded on both Plaintiffs, admitted. (Minute
Order, Feb. 2, 2026, at pp. 13-14.)

On February 9, 2026, Plaintiffs filed the instant motion to set aside the portion of the Court's February 2, 2026 order deeming matters admitted (the "Motion").

On July 20, 2026, Defendants filed an Opposition.

On July 27, 2026, Plaintiffs filed a Reply.

ANALYSIS

Pursuant to Code of Civil Procedure section 473, subdivision (b), "[t]he court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." An application for relief must be made within a reasonable time, not exceeding six months, after the order. (Code Civ. Proc., § 473, subd. (b).)

A.

Motion to Set Aside Order Deeming Matters
Admitted

Plaintiffs seek to set aside the portion of the Court's February 2, 2026 order deeming the truth of the matters specified in Chad's RFAs, Set One. In that Order, the Court found that although Plaintiffs' counsel represented that he had served responses to the requests on behalf of both Plaintiffs by email and mail, the Court had insufficient basis to determine that substantially compliant responses were served before the hearing in the absence of proof of service or a copy of the responses. (See Code Civ. Proc., § 2033.280, subd. (c) [court must make the order deeming matters admitted unless it finds that the responding party has served a substantially compliant proposed response before the hearing].) At the hearing on the motions to deem the requests admitted, Defendants acknowledged receiving an email with attachments from Plaintiffs' counsel, but claimed that electronic service was improper and indicated that they had not reviewed the attachments. (C. Schott Decl., Exh. B.) As Plaintiffs note, the ruling turned on evidentiary issues.

Plaintiffs' counsel, Brad Barnholtz ("Barnholtz"), asserts that it was his excusable neglect in failing to submit a copy of the responses and the proof of service that resulted in the adverse ruling. (Barnholtz Decl., ¶¶ 4-5.) Defendants argue that there was no excusable error because the Order was entered after months of Plaintiffs' non-compliance with discovery obligations and that in any case, Plaintiffs do not establish proper service before the hearing, making relief from the Order unavailable. (Opp'n, at pp. 8-14.)

(1)

The Adverse

Order Was the Result of Counsel's Error.

Defendants contend that Barnholtz's averment of error isolates a single mistake that does not account for Plaintiffs' months-long failure to respond to the requests. (Opp'n, at pp. 9-10.) Defendants reason that the adverse ruling resulted, in the first instance, from Plaintiffs' default in responding to discovery. (Id., at p. 9.)

While the motion to deem the matters specified in the requests would have been averted by service of timely responses, Code of Civil Procedure section 2033.280, subdivision (c) allows a responding party to avoid deemed admissions by serving responses before hearing on the motion. This provision and related case law recognize that deemed admissions have drastic litigation consequences that should not be applied lightly. (See *St. Mary v. Super. Ct.* (2014) 223 Cal.App.4th 762, 783-784.)

Service of substantially compliant responses would have precluded the Court from granting the motion and deeming the RFAs admitted. (Code Civ. Proc., § 2033.280, subd. (c).) Had evidence been submitted to the Court that the responses were served and that they were substantially compliant with the Discovery Act, the Court accordingly would have denied the motion. It is thus the failure to submit such evidence that resulted in the adverse ruling.

(2)

The Error Was

Excusable.

In determining whether the failure to submit evidence that the responses were served was excusable, the relevant inquiry is whether a

reasonably prudent person under the same circumstances might have made the same error. (Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1206.) A wholly inexcusable mistake will not justify relief. (Ibid.)

Courts construe the provisions of section 473 liberally, pursuant to a policy favoring disposition of actions on their merits. (Zamora v. Clayborn Contracting Group, Inc. (2002) 28 Cal.4th 249, 256.) Where a party moves promptly for relief and no prejudice would result, only slight evidence is required to justify set-aside. (Rogalski v. Nabers Cadillac (1992) 11 Cal.App.4th 816, 819-820.) Any doubts in applying discretionary relief are accordingly resolved in favor of the moving party. (Id., at p. 819.)

Here, Barnholtz attests that he was retained only days before the hearing on the motion to deem the RFAs admitted, that several discovery motions remained outstanding at that point, and that he promptly met with Plaintiffs to prepare verified responses to the RFAs so that he could effectuate service before the hearing. (Barnholtz Decl., ¶ 3.) He attests that he served the responses both electronically and via mail on February 1, 2026, the day before the hearing. (Ibid.) Barnholtz further states that he mistakenly did not file the responses or proof of service thereof or proffer them at the hearing. (Id., ¶ 4.) The responses, with proof of service electronically and by mail on February 1, 2026, are attached to Plaintiffs' counsel's declaration. (Id., Exh. B.)

Defendants contend that Barnholtz's failure to file the responses and relevant proofs was inexcusable because he admitted in email correspondence with Defendants that he reviewed the Court's tentative ruling regarding the motion and accordingly understood that the motion would be granted if substantially compliant responses were not served. (Opp'n, at p. 12.) Defendants suggest that a reasonably prudent attorney would have tendered the responses and the proof of service to the Court at the hearing or requested leave to file them rather than focusing on whether electronic service of the responses was adequate. (Id., at p. 13.)

As Plaintiffs assert in their Reply, this argument identifies another error in reasoning committed by Barnholtz—the assumption that email pursuant to a Notice of Electronic Service Contact Update was sufficient to effectuate service of the responses. (Reply, at p. 7.)

Defendants acknowledge that Barnholtz was substituted into this matter as Plaintiffs' counsel on January 30, 2026, one court day before the hearing on the motion to deem Chad's RFAs admitted. Barnholtz was accordingly working to resolve several outstanding discovery matters within severe time constraints, and mistakes in filing and in interpretation of filed notices might, under the circumstances, have been made by any reasonably prudent attorney. The Court thus finds that the errors resulting in the deemed admissions were excusable.

(3)

Plaintiffs

Timely Moved for Relief.

Plaintiffs moved for relief just one week after the February 2, 2026 Order was entered, well within the six-month deadline prescribed by statute and promptly after notice of the order was given. The Court therefore finds that the motion was made within a reasonable time.

(4)

Defendants Do

Not Rebut Plaintiffs' Evidence of Service.

Defendants make much of the fact that their recollection of the hearing does not correspond to the Court's findings in its February 2, 2026 Order and to the factual premise of the Motion. Specifically, Defendants assert that, although the ruling indicates that Barnholtz represented at the hearing that he had served the responses by electronic service and via mail, Barnholtz actually made no such representation and it was Defendants who stated that mail service was represented. (Opp'n, at pp. 5-6; B. Schott Decl., ¶¶ 7-8; C. Schott Decl., ¶ 9.) Defendants contend that Barnholtz's representation of service by mail only arose after the hearing, and imply that no responses were served by an authorized method of service before the hearing. (Opp'n, at p. 8.)

As to what matter was discussed at the hearing, Defendants effectively ask the Court to reverse its previous factual findings without evidence that those findings were erroneous. In the absence of evidence otherwise, the Court has no basis to find that Barnholtz did not represent that he made service by mail at the February 2, 2026 hearing.

As to whether service was effectuated before the hearing, Barnholtz

submits proof of service of the responses by mail, declaring under penalty of perjury that the responses were served on February 1, 2026 by depositing them with the United States Postal Service in Valencia, California. (Barnholtz Decl., Exh. B.) Service by mail is complete at the time of deposit. (Code Civ. Proc., § 1013, subd. (a).) Defendants provide no evidence that the responses were not mailed as indicated.

Moreover, the foregoing argument presumes that service before the hearing is required for relief. It is not. All that is required by section 473, subdivision (b) is mistake, inadvertence, surprise, or excusable neglect. Case law and the Discovery Act's withdrawal provision support a liberal grant of relief even where substantially compliant responses are not served before the hearing on a motion to deem RFAs admitted. (See Code Civ. Proc., § 2033.300, subd. (b) [withdrawal of admission available if made as the result of mistake, inadvertence, surprise, or excusable neglect]; *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983 [allowing party to withdraw from deemed admissions to prevent windfall to requesting party].)

Given that the Court has found that Barnholtz's erroneous reliance on email service was excusable, mail-service of responses before the hearing, although adequately shown, is not necessary to the determination of the Motion.

(5)

The Responses
Are Substantially Compliant.

Upon review of the responses attached to Barnholtz's declaration, they are verified by Plaintiffs and contain both admissions and denials, including explanatory remarks, without asserting any waived objections. (See generally Barnholtz Decl., Exh. B.) The Court finds the responses to be substantially compliant with the Discovery Act. (Code Civ. Proc., §§ 2033.210 et seq.)

Based on the foregoing, the Court GRANTS the Motion. The portion of the February 2, 2026 Order deeming the matters specified in Chad's RFAs, Set One admitted by Plaintiffs is hereby vacated.

(6)

Defendants'

Request for Fees and Costs Is Unsupported.

Defendants ask that the Court, if it grants relief, award Defendants their reasonable attorney fees and costs incurred in opposing the Motion. (Opp'n, at p. 14.) Plaintiffs concede that this would be appropriate, but assert that the request for relief is unsupported. (Reply, at p. 10.)

Defendants contend that they consulted with limited-scope representation counsel regarding the Motion and preparation of their Opposition, incurring consultation fees in the amount of \$850.00, and \$50.00 in filing fees, mailing expenses, and printing costs. (B. Schott Decl., ¶ 14.) No further support for the request is included, such as a declaration from counsel of the fee calculation or verified itemization of the costs incurred.

Plaintiffs note that, while two Notices of Limited Scope Representation were filed on July 17, 2026, those notices define the scope of representation as including only deposition proceedings and related preparation and attendance, and do not include any motion consultation. (Suppl. Barnholtz Decl., Exhs. A, B.) The Court thus has insufficient basis to award fees and costs.

Defendants' request for fees and costs is accordingly DENIED.

CONCLUSION

The Court GRANTS Plaintiffs Richard Jones and Olivia Chan-Jones' motion to set aside the portion of the Court's February 2, 2026 Order deeming the matters specified in Defendant Chad M. Schott's Requests for Admission, Set One admitted.

The Court DENIES Defendants Chad M. Schott and Brooke K. Schott's request for attorney fees and costs.

Moving party to give notice.